**IN THE UNITED STATES PATENT AND TRADEMARK OFFICE**

**CONDITIONAL REQUEST FOR SUSPENSION OF ACTION**
**UNDER 37 CFR § 1.103(a) (SIX-MONTH SUSPENSION)**

| | |
|---|---|
| **Applicant / Inventor:** | Reinaldo Javier Aguiar Marcano |
| **Application Number:** | 19/562,818 |
| **Filing Date:** | March 11, 2026 |
| **Confirmation Number:** | 1093 |
| **Examiner:** | ANDREA BENNETT |
| **Office of Petitions:** | Charles Steven Brantley, Attorney Advisor |
| **Entity Status:** | SMALL ENTITY (37 CFR § 1.27) |
| **Title of Invention:** | APPARATUS FOR A MASSIVELY PARALLEL OPTICAL DATA BUS ARCHITECTURE |

**Mail Stop Missing Parts**
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

Pursuant to 37 CFR § 1.103(a) and MPEP § 709, the pro se Applicant, Reinaldo Javier Aguiar Marcano, hereby respectfully requests that the Office suspend action in the above-identified application for a period of **six (6) months**.

## I. CONDITIONAL NATURE OF REQUEST (MPEP § 709)

Applicant acknowledges that under MPEP § 709, a suspension of action under 37 CFR § 1.103(a) cannot be granted during pre-examination processing while a Notice to File Missing Parts or Notice of Incomplete Reply is outstanding. Accordingly, this request is expressly structured as a **CONDITIONAL REQUEST** to take effect automatically upon the Office of Patent Application Processing (OPAP) verifying that the accompanying response package has fully cured all pre-examination formalities and entering the application into Technology Center 2100.

## II. SHOWING OF GOOD AND SUFFICIENT CAUSE

Good and sufficient cause exists for the requested suspension under 37 CFR § 1.103(a):

1. **Active Federal Civil Rights and Constitutional Litigation:**
   Applicant is the sole plaintiff in active federal litigation currently pending before the United States District Court for the Southern District of Texas, Houston Division, Case No. 4:26-cv-08794 (assigned to Judge Kenneth M. Hoyt; Cause: 28:1983 Civil Rights, Nature of Suit: 440 Civil Rights).

2. **Protection of Patent Rights and Preservation of Status Quo:**
   The federal action seeks emergency injunctive relief to restrain unlawful state-court proceedings that have severely impaired Applicant's physical liberty and ability to access commercial counsel. A six-month suspension will allow the federal court to rule on the pending application for temporary restraining order and preserve Applicant's intellectual property assets without forcing premature abandonment or uncoordinated prosecution.

## III. STATUTORY PROCESSING FEE RECONCILIATION

The processing fee for a request for suspension under 37 CFR § 1.17(i) is **$60.00** for a Small Entity (Fee Code 2830). Applicant respectfully requests that said $60.00 fee be applied directly from the available unapplied deposit funds as Priority 2 in accordance with the fee allocation request set forth in the accompanying transmittal response.

Respectfully submitted,

**/Reinaldo Javier Aguiar Marcano/**
**Reinaldo Javier Aguiar Marcano**
Inventor and Pro Se Applicant
Mailing Address: 2302 Britton Ridge Drive, Katy, Texas 77494
Telephone: (202) 599-3979
Email: `rj.aguiar@gmail.com` (USPTO Account)
Email: `rj.aguiar.m@gmail.com`
Email: `reinaldo.aguiar.marcano@isbn9781971481296.com`
Date: October 10, 2026